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Judgment Sheet
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Criminal Revision No.10045 of 2019

(Mian Sohaib ul Rehman. Vs. Muhammad Bashir through L.Rs)

J U D G M E N T

Date of hearing: 12.06.2025

Petitioner by: Mian Zulfiqar Ali, Advocate.

State by: Ms. Asiya Yasin, DPG.

Respondent No.2a-d Mr. M. Anwar Khan, Advocate

ABHER GUL KHAN, J. Through this criminal revision petition filed under section 439 read with section 561-A Cr.P.C., Mian Sohaib ul Rehman (petitioner) seeks setting aside the order dated 29.01.2019 passed by the Mr. Muhammad Naeem Sheikh, Learned Addl. Sessions Judge, Lahore who was pleased to dismiss the application for restoration of possession of plot filed by the petitioner.

2. Arguments heard and record perused.

3. Perusal of record reveals that Muhammad Bashir along with Fakir Muhammad filed complaint on 13.12.2005 under section 3 of the Illegal Dispossession Act, 2005 and during the proceedings of the complaint, he also filed an application under section 7 of the Illegal Dispossession Act, 2005 on 12.06.2006 for the restoration of possession of property. The said application was accepted vide order dated 21.07.2006 and bailiff handed over the vacant possession of the plot to Muhammad Bashir in compliance of the court order. The report of bailiff is very much relevant in this regard as nowhere bailiff mentioned in his report that plot in dispute was owned and possessed by present petitioner

Mian Sohaib ur Rehman rather the proceedings were smoothly conducted and possession was handed over to Muhammad Bashir without any resistance or counter claim agitated at the spot. The petitioner on 29.07.2006 filed application u/s 203 Cr.P.C. and he made a prayer that the complaint filed by Muhammad Bashir (respondent No.1) be dismissed and order dated 21.07.2006 whereby the order for the restoration of possession was made be suspended till the final decision of the application whereas bailiff on the day of filing of application had already handed over the vacant possession to the complainant of the plot at the spot. The complaint ultimately met with the fate of acquittal of accused vide judgment dated 20.07.2011 and till that day, neither said application was decided which had become infructuous because compliance of the court order was made nor it was agitated to be decided in accordance with law and after the acquittal made on 20.07.2011, the petitioner with the delay of almost three months on 05.10.2011 filed application for the restoration of possession with the claim that he was in fact in possession of land and bailiff wrongly handed over the possession to complainants but petitioner has failed to justify his stance through relevant provision of law before the court because inspite of query, the learned counsel for the petitioner has miserably failed to mention any provision of law under which the petitioner was empowered to file petition for the decision of application which was not decided during the pendency of complaint filed under section 3 of the Illegal Dispossession Act, 2005.

4. Furthermore, during the course of arguments, learned counsel for the petitioner relied upon document No.7116, Book No.1, Volume No.403 dated

27.07.2004 on the basis of which he is claiming himself to be owner of the land in dispute which was never in possession of Mian Maqsood Ahmed (respondent/accused in complaint) but it is crystal clear from record that Mst. Almas Fakhra, etc. being the legal heirs of Mian Muhammad Azam have filed suit regarding cancellation of said sale deed which is pending since 2007 against petitioner and Mian Maqsood Ahmad who is real brother of present petitioner. Both were impleaded as defendants in the titled suit in which present petitioner Mian Shoaib ur Rehman through filing of written statement mentioned that he has sold 10 marlas land to someone else and handed over vacant possession to that person. During the pendency of suit for cancellation of document the petitioner was not entitled to ask criminal court for the restoration of possession and once complaint was decided which resulted into acquittal vide order dated 20.07.2011 the trial court become functus officio and was not empowered to decide the grievance of the petitioner who get his application decided in the year 2019 and approached this Court with the considerable delay. Reference in this regard can be made to the case reported as ALI KULI AMIN UD DIN vs MUHAMMAD ZAFAR and others (2012 P Cr. LJ 1136) wherein hon'ble court held as under

S.369. Court not to alter judgment. Scope. Court becomes functus officio after it passes and signs any order. No court including High Court can review its order passed in criminal jurisdiction.

Similar view was taken in the case reported as IQBAL vs THE STATE and another (2001 P Cr. LJ 1634). The relevant portion is reproduced below for reference sake:-

No Court when it had signed its judgment, would alter or review the same, except to correct a clerical error. High Court could not review its own order

passed in the criminal jurisdiction as the Court would become functus officio after it had passed and signed the order.

5. In view of above discussion, instant criminal revision being devoid of any force is hereby dismissed.

(ABHER GUL KHAN)
JUDGE

Approved for reporting

JUDGE

Abdul Rehman